



COLORADO

Department of
Regulatory Agencies

Division of Professions and Occupations

August 8, 2024

Duane Mullner
[REDACTED]
[REDACTED]

Email address: [REDACTED]

Re: License Number: LPC.0000509
Case Number: 2024-4214

Dear Duane Mullner,

The State Board of Professional Counselor Examiners (the “Board”) has concluded its inquiry into the aforementioned matter. It was the Board’s decision not to commence with formal proceedings against your professional license. However, the Board did determine disciplinary action in the form of this letter of admonition is warranted, pursuant to §12-245-225(1)(a), C.R.S.

The Board admonishes you for failing to respond to a Board complaint, pursuant to §12-245-606; Rule 1.18(E); and §12-245-224 (x), which states: Has failed to respond, in the manner required by the Board, to a complaint filed with or by the Board against the licensee, registrant, or certificate holder by failing to reply to the board and failing to provide documentation for the CE audit.

By this letter, the Board takes the formal disciplinary action of admonishing you for the conduct specified above and warns you that repetition of such practice may lead to imposition of more severe disciplinary action. This letter is an open public record and a reportable action to individuals or entities requesting disciplinary information. The Board strongly encourages you to review and understand the Mental Health Practice Act requirements and obligations for the practice of professional counselor in Colorado.

In accordance with §12-20-404(4)(b), C.R.S., the Board advises you that you have the right to make a written request that the Board initiate formal disciplinary proceedings in order to adjudicate the conduct or acts upon which this letter is based. You must make your written request within twenty days after receipt of this letter and address your request to Reina Sbarbaro-Gordon, Program Director, at the email address listed below. If you make a timely request, the Board will deem this letter of admonition vacated and may proceed with disciplinary proceedings in accordance with §12-20-404(4)(b)(II), C.R.S., and applicable rules.

A Letter of Admonition, when accepted, becomes a permanent, public portion of your record. It is not, however, a restriction on your practice as a licensed Professional Counselor.

If you have further questions or concerns, please visit our website at <https://www.colorado.gov/dora/dpo> or you can contact our office at dora_mentalhealthboard@state.co.us or by calling (303) 894-7800.

Sincerely,

FOR THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELORS

Reina Sbarbaro-Gordon
Program Director